



CHAPTER clxvi.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to St. Margaret's Gas Stirling Gas Waltham Abbey and Cheshunt Gas Worsbroughdale and Worsbrough Gas and Worthing Gas. A.D. 1904.
—
[15th August 1904.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation (No. 3) Act 1904. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

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SCHEDULE.

LIST OF ORDERS.

ST. MARGARET'S GAS.—Order empowering the Saint Margaret's Gas Company Limited to maintain and continue gasworks to construct additional gasworks and to supply gas in the parish of Stanstead St. Margaret's and parts of the parishes of Great Amwell and Stanstead Abbots in the county of Hertford and in the parish of Roydon in the county of Essex and for other purposes.

STIRLING GAS.—Order authorising the Stirling Gas Light Company to raise additional capital and for other purposes.

WALTHAM ABBEY AND CHESHUNT GAS.—Order empowering the Waltham Abbey and Cheshunt Gas and Coke Company to construct and maintain additional gasworks and to raise additional capital and for other purposes.

WORSBROUGHDALE AND WORSBROUGH GAS.—Order empowering the Worsbroughdale and Worsbrough Gas Light and Coke Company Limited to maintain continue and construct gasworks and to supply gas within part of the urban district of Worsbrough and for other purposes.

WORTHING GAS.—Order empowering the Worthing Gas Light and Coke Company to raise additional capital and for other purposes.

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Order empowering the St. Margaret's Gas Company Limited to maintain and continue Gasworks to construct additional Gasworks and to supply Gas in the parish of Stanstead St. Margaret's and parts of the parishes of Great Amwell and Stanstead Abbots in the county of Hertford and in the parish of Roydon in the county of Essex and for other purposes.

St. Margaret's Gas.

Preliminary.

1. This Order may be cited as the St. Margaret's Gas Order 1904.

Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commencement of Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with and form part of this Order (except where the same are expressly varied by or are inconsistent with this Order) and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order. For the purposes of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

Incorporation of Acts.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained continued or constructed.

Interpretation.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be—

Limits of Order.

(1) The parish of Stanstead St. Margaret's in the county of Hertford:

(2) The parish of Great Amwell in the county of Hertford except—

(a) The part of the parish which lies to the north and west of an imaginary straight line drawn from the point on the road leading from Hertford to St. Margaret's at which the parish

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boundary leaves that road in a north-easterly direction to the point at which the boundaries of the parishes of Great Amwell and Ware Rural intersect the centre of the Great Eastern Railway (Buntingford Branch) at the River Lea; and

(b) That part of the parish which lies to the south and west of an imaginary line drawn in a south-easterly direction from the point at which the boundary between the parishes of Great Amwell and Little Amwell crosses the footpath from Little Amwell to Haileybury College along the south-west side of that footpath till it reaches the boundary of the parish of Stanstead St. Margaret's thence along the boundary between the parishes of Great Amwell and Stanstead St. Margaret's first in a south-easterly and then in a north-easterly direction to the main road from London to Ware thence southward along the west side of the said road to where a public footpath leading from the Ware Road to the Stanstead Road joins the said Ware Road thence along the northern side of that footpath to the Stanstead Road thence southward along the west side of the said road to the south side of a tunnel under the said road from the gravel pit of Herbert Brazier to the Hailey Brick Fields thence along the southern fence of the said gravel pit crossing the New River and Hertford Branch of the Great Eastern Railway to the River Lea then southward along the centre of the said river to the boundary of the parish of Hoddesdon Urban:

(3) The parish of Stanstead Abbots in the county of Hertford except so much of that parish as lies to the south and west of an imaginary line drawn from the point of intersection of the parish boundaries of Great Amwell Hoddesdon Urban and Stanstead Abbots to the centre of the bridge near to the toll-gate on the road leading from Rye House to St. James's Church thence in a south-easterly direction along the centre of the watercourse to the River Stort at a point 120 yards or thereabouts north of the Great Eastern Railway (Cambridge line) where it crosses the said river:

(4) The parish of Roydon in the county of Essex.

The area comprised within the limits of supply is more particularly delineated on a map deposited at the Board of Trade and signed by an assistant secretary to the Board and if there should be any difference between the description contained in this section and the area delineated upon such map the latter shall prevail.

Undertakers.

Undertakers.

6. The St. Margaret's Gas Company Limited shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

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7. The share capital of the Undertakers for the purposes of the undertaking shall not exceed twenty thousand pounds consisting of the share capital of five thousand pounds already raised by the Undertakers (in this Order referred to as "the original capital") and of additional capital (in this Order referred to as "the additional capital") to be issued subject to the provisions of this Order not exceeding fifteen thousand pounds including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for such purposes further additional capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

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Capital.*

8. The Undertakers shall when any shares or stock forming part of the additional capital are or is to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender of any holder of shares or stock be the same in amount as the bidding or offer by tender of any other person the bidding or offer of such holder shall be accepted in preference.

*New shares or
stock to be
offered by
auction or
tender.*

9. It shall be one of the conditions of any sale of shares or stock under this Order that the full price thereof including any premium given by any purchaser at such sale in respect thereof shall be paid to the Undertakers within three months after such sale.

*Purchase
money of
capital sold to
be paid within
three months.*

10. The intention to sell any shares or stock by auction or by tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every district council having jurisdiction within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

*Notice to be
given of sale
of shares or
stock.*

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Shares or
stock not sold
by auction or
by tender to
be disposed of
by directors
or offered to
shareholders
employees and
consumers.

11. When any shares or stock have been offered for sale by auction or by tender under the provisions of this Order and not sold the same may be disposed of by the directors of the Undertakers at a price not less than the reserved price put upon the same respectively for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of the ordinary shares or ordinary stock of the Undertakers or to the employees of the Undertakers or to the consumers of gas supplied by the Undertakers or partly to one and partly to another or others in such manner as may be prescribed by a resolution passed by the directors of the Undertakers provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by such resolution may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Order with respect to the sale of shares and stock forming part of the additional capital and the reserved price put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock or to such employees or consumers at the last-mentioned reserved price and so until the whole of such shares or stock are or is sold.

Application of
premium arising
on issue of
shares or stock.

12. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage or otherwise by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that all such sums shall be deemed to be part of the paid up or nominal capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and the amount which the Undertakers may invest to form a reserve fund.

Limit of dividend on new capital.

13. Except as by this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the original capital and the additional capital than the standard rates of dividend herein-after mentioned namely ten pounds in respect of every one hundred pounds actually paid up of the original capital and seven pounds in respect of every one hundred pounds actually paid up of the additional capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said yearly rate.

Dividends on
different
classes of
shares or stock
to be paid proportionately.

14. In case in any year or in any half year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rate of dividend on each class of ordinary shares or stock in the original and additional capital a proportionate reduction shall be made in the dividends

payable on each class Provided that nothing in this section shall prejudice the right of the Undertakers to resort to their reserve fund to answer any deficiencies which may at any time have arisen in the dividends of the Undertakers.

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15. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at any time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers and secured as aforesaid after the commencement of this Order.

Limit of borrowing powers.

16. All moneys raised under this Order shall be applied to the purposes of the undertaking to which capital is properly applicable.

Application of money.

Purchase of Land.

17. The Undertakers may for the purposes of the undertaking purchase take on lease or acquire (by agreement but not otherwise) and hold in addition to the lands described in Schedule A to this Order annexed any lands which they may require Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products except the lands described in the said schedule.

Power to purchase additional land.

Maintenance and Continuance of Gasworks Manufacture and Sale of Gas and Residual Products.

18. The Undertakers may on the lands described in Schedule A to this Order annexed maintain and continue alter enlarge improve or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter enlarge improve or discontinue additional gasworks retorts retort houses gasholders receivers purifiers meters apparatus and works for the manufacture distribution storage conversion and sale of gas and of residual products arising in or resulting or producible from or used in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order make and store gas upon such lands or some part or parts thereof and supply and sell the same within the limits of supply and may on the same lands make convert and store residual products as aforesaid and may sell and dispose of the same at the works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

Undertakers may maintain and continue existing gasworks and may construct new gasworks on lands described in schedule and may make and sell gas &c.

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For protection
of Great
Eastern Rail-
way Company.

19. Notwithstanding anything in this Order contained the following provisions for the protection of the Great Eastern Railway Company (hereinafter called "the railway company") shall except so far as may be otherwise agreed be in force and have effect and be binding on the Undertakers:—

(1) In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works which the Undertakers may be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable or used by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to plans and sections to be submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Undertakers who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Undertakers and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Undertakers shall make compensation in respect thereof to the railway company the amount of such compensation to be recoverable from the Undertakers by all and the same means as any simple contract debt is recoverable:

(2) If any question shall arise under this section as to whether any works should reasonably satisfy the railway company or their principal engineer or as to whether their or his approval is unreasonably withheld or otherwise the same shall be determined by arbitration the arbitrator being appointed in default of agreement by the President of the Institution of Civil Engineers.

For protection
of Lee Conservancy Board.

20. For the protection of the Lee Conservancy Board (in this section called "the Lee Board") the following provisions shall unless otherwise agreed upon between the Undertakers and the Lee Board apply and have effect (that is to say):—

(1) In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works upon across over

under or in any way affecting any road footpath or bridge lands or property now or hereafter belonging to or under the control of the Lee Board the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the Lee Board and only according to plans submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Undertakers who shall restore and make good any such road footpath bridge lands or property which may be disturbed or interfered with by or owing to any operations of the Undertakers and all such works matters and things shall be constructed executed and done so as not to cause any injury to any such road footpath bridge lands or property and if any injury shall arise from or be in any way owing to any of the acts operations matters and things aforesaid the Undertakers shall make compensation in respect thereof to the Lee Board the amount of such compensation to be recoverable from the Undertakers by all and the same means as any simple contract debt is recoverable :

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- (2) If any question shall arise under this section as to whether any works should reasonably satisfy the Lee Board or their engineer or as to whether their or his approval is unreasonably withheld or otherwise the same shall be determined by arbitration the arbitrator being appointed in default of agreement by the President of the Institution of Civil Engineers.

21. Notwithstanding anything in this Order contained the following provisions for the protection of the River Stort Navigation (herein-after called "the Stort Navigation") shall be in force and have effect and be binding on the Undertakers :—

For protection
of River Stort
Navigation.

- (1) In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works which the Undertakers may be authorised to lay down and execute upon across over under or in any way affecting any property now or hereafter belonging to the Stort Navigation the same shall be done to the reasonable satisfaction of the engineer of the Stort Navigation and all such works matters and things shall be constructed executed and done so as not to cause any injury to the property of the Stort Navigation and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Undertakers shall make compensation in respect thereof to the Stort Navigation the amount of such compensation to be recoverable from the Undertakers by all and the same means as any simple contract debt is recoverable :

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- (2) If any question shall arise under this section as to whether any works should reasonably satisfy the Stort Navigation or their engineer or as to whether their or his approval is unreasonably withheld or otherwise the same shall be determined by arbitration the arbitrator being appointed in default of agreement by the President of the Institution of Civil Engineers.

For protection
of Herts
County
Council.

22. Notwithstanding anything contained in this Order the following provisions for the protection of the county council of the administrative county of Hertford (in this section referred to as "the county council") shall unless otherwise agreed between the Undertakers and the county council have effect:—

- (1) The Undertakers shall not permit any trench made by them in any main road street bridge or other highway for the time being maintainable by the county council or to the maintenance of which the county council shall for the time being contribute to be opened for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards where only two carts can pass at the same time :
- (2) Where any pipe conduit or other work of the Undertakers is required to be laid or constructed beneath the surface of any such road street bridge or highway as aforesaid the same shall if possible be laid or constructed at such a depth that not less than two feet shall intervene between the surface of such road street bridge or highway and the upper surface of such pipes conduit or work Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as herein-after in this section provided :
- (3) If the county council shall for the purpose of altering any such road street bridge or highway as aforesaid or rebuilding or altering any such bridge at any time require the position or level of any pipe conduit or other work of the Undertakers laid in under or through any such road street or bridge as aforesaid to be altered the Undertakers shall at their own expense on receiving notice in writing under the hand of the clerk of the county council so to do alter the same as reasonably required by such notice and under the superintendence of the officer of the county council and any additional expense in relation to the alteration or rebuilding of any such bridge as aforesaid or the approaches thereto to which the county council may be put by reason of necessity for providing for any pipe conduit or other work of the Undertakers shall be paid by the Undertakers to the county council Provided that this subsection shall not extend to any alteration or rebuilding as aforesaid which may be required solely for the

accommodation of any light railway or tramway belonging to the county council: A.D. 1904.

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The Undertakers shall also pay to the county council all reasonable expense actually incurred by them in relation to the superintendence by this subsection authorised Any difference as to the reasonableness of any requirement contained in any such notice or as to the amount of any sum to be so paid by the Undertakers to the county council shall be determined by arbitration as herein-after in this section provided :

- (4) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party.

23. If any difference arise between the Undertakers and any railway canal or other company other than the Great Eastern Railway Company the Lee Conservancy Board and owner of the Stort Navigation whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party. Differences
with railway
and other com-
panies.

Quality of Gas.

24. The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by not less than fourteen sperm candles and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871. Quality of gas.

Pressure of Gas.

25. All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer. Pressure of
gas.

Testing of Gas.

26. The Undertakers shall within six months after the commencement of this Order cause to be provided at their works a testing place with apparatus therein according to the provisions of the Gasworks Clauses Act 1871 and the burner to be used for testing gas shall be a Sugg's London No. 1 Argand with a six-inch by one-and-three-quarters-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used Provided that any other description of Testing of gas.

A.D. 1904. burner may be used which may for the time being be approved for the purpose by the Board of Trade and any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may subject to the terms of his appointment at such testing place or elsewhere as and where he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place not being the immediate approach to any railway or canal bridge or railway station vested in or under the control of any local or road authority and two hours' notice shall be given to the Undertakers of the time and place at which such testing is to be conducted.

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Price of Gas.

Price of gas.

27. The price to be charged by the Undertakers for gas supplied by them shall not exceed five shillings per thousand cubic feet and so in proportion for any less quantity supplied. Provided that at any time after the expiration of three years from the commencement of this Order the Board of Trade may if they think fit by order in writing signed by a secretary or an assistant secretary of the said Board alter the said maximum price either by substituting any other sum for the said sum of five shillings or by fixing a standard price with sliding scale as to profits and as from the date specified in such order (herein-after referred to as "the specified date") the provisions set forth in Schedule B to this Order annexed shall be in force and have effect and this Order shall be read and construed accordingly. A copy of any such order made by the Board of Trade shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

Miscellaneous.

Undertakers to pay interest on deposit.

28. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

As to construction and placing of pipes &c. between mains and meters.

29. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

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(3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :

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(4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

30.—(1) The Undertakers may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines dynamos stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon between the Undertakers and the persons to or for whom the same are sold let fixed repaired or removed and such remuneration rents and charges shall be recoverable in the same manner as rents or sums due to the Undertakers for gas.

Power to supply gas fittings
Fittings not to be subject to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings

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Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Anti-fluctuators for gas engines.

31. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Gas consumers to give notice to Undertakers before removing.

32.—(1) Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur.

(2) Notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Notice of discontinuance.

33. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Power to refuse to supply persons in debt for other premises.

34. If a person requiring a supply of gas from the Undertakers for any premises occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Period of error in defective meters.

35. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and

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shall be recoverable in the like manner as gas rents are recoverable by the Undertakers. A.D. 1904.

St. Margaret's Gas.

No penalty in case of unavoidable cause.

36. No penalty shall be incurred by the Undertakers for neglect or refusal to give a supply of gas in accordance with the provisions of this Order or of the enactments incorporated therewith or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident.

37. The Undertakers may enter into and carry into effect contracts with any local authority company or persons beyond the Undertakers' limits of supply (but only with the consent in writing of the local authority of and of any company or person supplying gas under parliamentary powers within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding seven years as may be agreed upon.

Undertakers may contract with local authority and others for supply in bulk.

38. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Power to erect &c. cottages for officers and servants.

39. Section 140 of the Companies' Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation the expression "the company" in the said section shall be construed to mean the Undertakers.

8 Viet. c. 16 s. 140 incorporated.

40. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

SCHEDULES.

SCHEDULE A.

(A) A piece of land containing 1 rood or thereabouts upon which the existing gasworks of the Undertakers are erected being a part of the plot numbered 266 on the $\frac{1}{2500}$ Ordnance map (Hertfordshire XXX. 13 First Edition) and bounded on the north-easterly side by the Hertford branch of the Great Eastern Railway on the north-westerly side by an occupation road on the south-westerly side by cottages (being the remainder of the said plot numbered 266) and on the south-easterly side by pasture land numbered 265 on the said map.

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(B) A piece or parcel of land containing 2 acres and 32 perches or thereabouts being the plot numbered 270 on the said map and bounded on the north-easterly side by the said Hertford branch of the Great Eastern Railway on the north-westerly side by pasture land numbered 271 on the said map on the south-westerly side by the road adjoining the New River leading from Great Amwell to St. Margaret's Station and on the south-easterly side by the occupation road aforesaid.

SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf contained in the said foregoing Order prescribing a standard price for gas supplied by the Undertakers with sliding scale as to the profits and as from the specified date be read and construed subject to the modifications following:—

Sections 30 to
 34 of Gasworks
 Clauses Act
 1847 to cease
 to be incor-
 porated.

(i) Sections thirty to thirty-four (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or form part of the foregoing Order and in construing the said Act for the purposes of the foregoing Order section 35 of said Act shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the prescribed rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the insurance fund:

Price of gas
 with sliding
 scale as to
 dividend.

(ii) Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet:

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary shares or stock in the share capital of the Undertakers as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rates

of dividend by five shillings on every hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds ;

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And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rates of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

- (iii) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Undertakers be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital of the Undertakers which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Undertakers from accident strike or other circumstance which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said limit as often as such reduction happens Provided that when and so often as the said fund reaches the said limit of one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend Provided also that resort may be had to the insurance fund to meet any such extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid :

If profits exceed amount limited excess may be invested and form an insurance fund.

- iv) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the

Application of further excess of profit over

A.D. 1904.

*St. Margaret's
 Gas.*
 prescribed
 rates.

Power to create
 a reserve fund
 and application
 thereof.

excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year :

- (v) Where in any year the prescribed rates on the ordinary share capital or stock of the Undertakers exceed the standard rates by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the specified date in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the prescribed rates and save as by this schedule specially provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund :

Saving of exist-
 ing contracts.

- (vi) Nothing in this schedule contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the specified date with respect to the gasworks of or the supply of gas by the Undertakers.

STIRLING GAS.

Stirling Gas.

*Order authorising the Stirling Gas Light Company to raise
 Additional Capital and for other purposes.*

Short title.

1. This Order may be cited as the Stirling Gas Order 1904.

Commence-
 ment of Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Construction of
 Order.

3. The Stirling Gas Act 1898 (in this Order referred to as "the Act of 1898") as amended by this Order and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

4. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Order are incorporated with and form part of this Order (that is to say):—

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Stirling Gas.
 Incorporation
 of Acts.

The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the following matters:—

- The distribution of the capital of the Company into shares;
- The transfer or transmission of shares;
- The payment of subscriptions and the means of enforcing the payment of calls;
- The forfeiture of shares for non-payment of calls;
- The remedies of creditors of the Company against the shareholders;
- The borrowing of money by the Company on mortgage or bond;
- The consolidation of the shares into stock;
- The general meetings of the Company and the exercise of the right of voting by the shareholders;
- The making of dividends;
- The giving of notices; and
- The provisions to be made for affording access to the special Act by all parties interested:

And Part I. (Cancellation and surrender of shares) Part II. (Additional capital) and Part III. (Debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts and the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871.

5. The several words and expressions to which by any Act wholly or partially incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction and the expression "the Company" shall mean the Undertakers.

Undertakers.

6. The Stirling Gas Light Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

7. In addition to the capital authorised to be raised by the Undertakers under the Act of 1898 (in this Order referred to as "the existing capital") they may for the purposes of their undertaking—

Additional
 capital.

- (1) Raise additional capital not exceeding in the whole forty-five thousand pounds (in this Order referred to as "the additional capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Undertakers shall not issue any share of less nominal value than ten pounds

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Stirling Gas.

nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty-five thousand pounds. Provided also that the nominal amount of the existing and additional capital at any time issued by the Undertakers as preference shares or stock shall not together exceed the nominal amount of the existing and additional capital then issued as ordinary shares or stock; and

- (2) Borrow on mortgage in respect of the additional capital any sum or sums not exceeding in the whole one-third part of the amount of the additional capital at the time actually issued by shares or stock including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until shares or stock for so much of the additional capital in respect of which such borrowing powers are sought to be exercised together with the premiums (if any) realised on the sale thereof have been fully paid up and the Undertakers have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that such shares or stock and premiums (if any) have been fully paid up and upon production to such sheriff of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Except as otherwise provided shares or stock in additional capital to be subject to same incidents as other shares or stock.

8. Except as by this Order otherwise provided the additional capital and the shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever (including the right of voting) in all respects as if that capital were part of the existing capital of the Undertakers of the same class or description and the shares or stock in the additional capital were shares or stock in the existing capital. The additional capital and the shares or stock therein shall form part of the capital of the Undertakers.

Additional capital to be offered by auction or tender.

9. The Undertakers shall when any shares or stock created under the powers of this Order are to be issued and before offering the same to the holders of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers may from time to time determine. Provided that at any such

sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner And provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bid or offer by tender of any holder of shares or stock shall be the same in amount as the bid or offer by tender of any other person for the same lot the bid or offer by tender of such holder shall be accepted in preference and preference may in like manner be given to any employee of the Undertakers or any consumer of gas supplied by the Undertakers whose bid or offer by tender is the same in amount as the bid or offer by tender made by any other person not being a holder of shares or stock of the Undertakers or employee or consumer as aforesaid.

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Stirling Gas.

10. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Purchase money of shares or stock to be paid within three months

11. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply of the Undertakers and to the secretary of the Edinburgh Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the said limits of supply.

Notice to be given as to sale of shares or stock.

12.—(1) When any shares or stock created under the powers of this Order have been offered for sale by auction or tender and not sold the same may be disposed of by the directors of the Undertakers at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may (if the directors of the Undertakers think fit) be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Undertakers in manner provided by the Companies Clauses Act 1863 or to the employees of the Undertakers or to the consumers of gas supplied by the Undertakers or partly to one and partly to another or others of them.

Shares or stock not sold by auction or tender to be offered to shareholders employees or consumers.

(2) Any shares or stock not so disposed of or so offered and not accepted in the case of shares or stock offered to the holders of shares or stock within the time prescribed by the said Act or in the case of shares or stock offered to such employees or consumers within the time limited by the directors of the Undertakers shall again be offered for sale by public auction or by tender

A.D. 1904. in the manner and subject to the provisions of this Order with respect to the
Stirling Gas. sale of shares or stock created under the powers of this Order (except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Undertakers think fit be less than the nominal amount thereof) and any shares or stock not then sold may be disposed of by the directors as aforesaid or offered to the holders of ordinary shares or stock or to such employees or consumers at not less than the reserved price put upon the same at such second sale and so until the whole of such shares or stock is sold.

Application of
premium arising on issue
of shares or
stock.

13. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend. Provided that all such premiums shall be deemed to be part of the paid-up capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and the amount which the Undertakers may invest to form an insurance fund.

Limit of dividend
depends on additional
capital.

14. Except as in this Order otherwise expressly provided the profits of the Undertakers to be divided in any year among the holders of the additional capital shall not exceed the rate (herein-after referred to as "the standard rate of dividend") of five pounds in respect of every one hundred pounds actually paid up of the additional capital whether issued as ordinary or preference capital.

Dividend
dependent on
price charged.
Repeal of s. 64
of Act of 1898.

15. As from the fifteenth day of May one thousand nine hundred and four section 64 of the Act of 1898 shall be repealed and from and after that day the standard price to be charged by the Undertakers for gas supplied by them shall be three shillings and twopence per one thousand cubic feet. Provided that the Undertakers may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the standard rate of dividend payable by the Undertakers on so much of the existing or additional capital as may have been issued as ordinary capital as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been above three shillings and fourpence the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price charged shall exceed three shillings and twopence be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary capital with a ten per centum standard rate of dividend and two shillings and sixpence on every one hundred pounds of ordinary capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Undertakers shall have been below three shillings the dividend payable by the Undertakers may in respect of each whole penny by which the price charged shall be below three shillings and twopence be increased above the standard rate of dividend by five shillings on every one hundred pounds of ordinary capital with a ten per centum standard rate of dividend and two shillings and sixpence on every one hundred pounds of ordinary capital with a five per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

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Stirling Gas.

16. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Prescribed rates to be paid proportionately.

17. Every person who becomes entitled to shares or stock in the additional capital shall in respect of the same be a holder of shares or stock in the capital of the Undertakers and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such shares or to the whole amount of such stock as the case may be.

Dividends on new shares or stock.

18. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein or in any Act previous to this Order contained the interest of all debenture stock and of all mortgages at any time after the commencement of this Order created and issued or granted by the Undertakers under any previous Act or this Order or any subsequent Act or Order shall (subject to the provisions of any subsequent Act or Order) rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock.

19. Section 38 (For appointment of judicial factor) of the Act of 1898 is hereby repealed as from the commencement of this Order but without prejudice to any appointment heretofore made or to the continuance of any proceedings then pending and after the commencement of this Order the mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor and in order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than one-tenth part of the total amount for the time being owing by the Undertakers.

Appointment of judicial factor.

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Stirling Gas.
Limit of interest on money borrowed.

20. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than four pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Order.

As to conversion of borrowed money into capital.

21. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into share capital any money borrowed under the provisions of this Order.

Priority of principal moneys secured.

22. The principal moneys secured by all mortgages granted by the Undertakers in pursuance of the powers of any Act of Parliament before the commencement of this Order and then subsisting shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Order.

Priority of mortgages and debenture stock over other debts &c.

23. All moneys to be raised by the Undertakers on mortgage or debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order. Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Undertakers for the purposes of the undertaking and works or injuriously affected thereby or by the construction thereof or by the exercise of any powers conferred on the Undertakers.

Receipt in case of persons not *sui juris*.

24. If any money is payable to a shareholder stockholder mortgagee or debenture holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate or of his tutor or curator or curator bonis shall be a sufficient discharge to the undertakers.

Application of moneys raised under this Order.

25. All moneys raised under this Order shall be applied only to the purposes of the Act of 1898 and this Order to which capital is properly applicable.

Gas Supply.

Quality of gas.

26. After the commencement of this Order the prescribed number of candles shall be not less than twenty in lieu of twenty-five as prescribed by section 69 of the Act of 1898.

Anti-fluctuators for gas engines.

27. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper

order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

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 ———
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28. No penalty shall be incurred by the Undertakers for neglect or refusal to give a supply of gas in accordance with the provisions of the Act of 1898 and of this Order or for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Undertakers. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

No penalty in case of unavoidable cause.

29. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

WALTHAM ABBEY AND CHESHUNT GAS.

Order empowering the Waltham Abbey and Cheshunt Gas and Coke Company to construct and maintain additional gasworks and to raise additional capital and for other purposes.

Waltham Abbey and Cheshunt Gas.

Preliminary.

1. This Order may be cited as the Waltham Abbey and Cheshunt Gas Order 1904 and the Waltham Abbey and Cheshunt Gas Act 1869 (in this Order referred to as "the Act of 1869") the Waltham Abbey and Cheshunt Gas Order 1881 (in this Order referred to as "the Order of 1881") and this Order may be jointly cited as the Waltham Abbey and Cheshunt Gas Acts 1869 to 1904.

Short and collective titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commencement of Order.

3.—(1) So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

Incorporation of Acts.

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

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The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and the provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order or are inconsistent with the Act of 1869 the Order of 1881 or this Order) and form part of this Order.

(2) For the purposes of such incorporation the term "special Act" in the said Acts shall mean this Order and the term "the Company" shall mean the Undertakers.

(3) Sections 30 to 34 (both inclusive) of the Gasworks Clauses Act 1847 shall be deemed not to have been incorporated with the Act of 1869 or with the Order of 1881 and section 35 of the said Gasworks Clauses Act shall for the purposes of incorporation with the Act of 1869 the Order of 1881 and this Order and of its application to the Undertakers be read and construed as though the words "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the prescribed rates of dividend as defined by this Order together with any sum which may be lawfully carried to the insurance fund authorised by section 17 of the Order of 1881.

Interpretation.

4. In this Order the expression "prescribed rates" means the rates of dividend authorised by the Order of 1881 and this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of the Order of 1881 and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and in the construction of

[4 EDW. 7.] *Gas Orders Confirmation (No. 3)* [Ch. clxvi.]
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this Order or of any such Acts for the purposes of this Order the expression "the undertaking" shall mean the undertaking of the Waltham Abbey and Cheshunt Gas and Coke Company as extended by this Order.

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Waltham
 Abbey and
 Cheshunt Gas.

Undertakers.

5. The Waltham Abbey and Cheshunt Gas and Coke Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Capital.

6. In addition to the capital authorised to be raised by the Undertakers by the Act of 1869 and the Order of 1881 (in this Order referred to as "the existing capital") they may raise additional capital not exceeding in the whole forty thousand pounds (in this Order referred to as "the additional capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Undertakers shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of share capital than will be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty thousand pounds.

Additional
 capital.

7. Except as by this Order otherwise provided the additional capital created by the Undertakers under this Order and the shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents (including the right of voting) whatsoever in all respects as if that capital were part of the existing capital of the Undertakers of the same class or description and the shares or stock in the additional capital were shares or stock in the existing capital.

Except as
 otherwise
 provided new
 shares or stock
 to be subject to
 same incidents
 as other shares
 or stock.

8. The Undertakers shall when any shares or stock forming part of the additional capital are or is to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Undertakers may determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter

New shares or
 stock to be
 offered by auc-
 tion or tender.

A.D. 1904. may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bidding or offer by tender of any holder of shares or stock be the same in amount as the bidding or offer made by any other person the bidding or offer of such holder shall be accepted in preference.

Purchase
money of capi-
tal sold to be
paid within
three months.

9. It shall be one of the conditions of any sale of shares or stock under this Order that the full price thereof including any premium given by any purchaser at such sale in respect thereof shall be paid to the Undertakers within three months after such sale.

Notice to be
given of sale of
shares or stock.

10. The intention to sell any shares or stock by auction or by tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of the district council of every urban district wholly or partially included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares or
stock not sold
by auction or
by tender to
be offered to
shareholders
employees and
consumers.

11. When any shares or stock have been offered for sale by auction or by tender under the provisions of this Order and not sold the same may be disposed of by the directors of the Undertakers at a price not less than the reserved price put upon the same respectively for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of the ordinary shares or ordinary stock of the Undertakers or to the employees of the Undertakers or to the consumers of gas supplied by the Undertakers or partly to one and partly to another or others in such manner as may be prescribed by a resolution passed by the directors of the Undertakers. Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by such resolution may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Order with respect to the sale of shares and stock forming part of the additional capital and the reserved price put upon such shares or stock may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock or to such employees or consumers at the last-mentioned reserved price and so until the whole of such shares or stock are or is sold.

Application of
premium aris-
ing on issue of
shares or stock.

12. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage or otherwise by the Undertakers and shall not be

considered as part of the capital of the Undertakers entitled to dividend
 Provided that all such sums shall be deemed to be part of the paid-up
 capital of the Undertakers for the purpose of determining the amount
 which the Undertakers may borrow under this Order and the amount
 which the Undertakers may invest to form an insurance or renewal fund.

A.D. 1904.
 —
*Waltham
 Abbey and
 Cheshunt Gas.*

13. Except as provided by section 27 (Fixing maximum price of gas with sliding scale as to dividend) of the Order of 1881 the Undertakers shall not in any year declare or make out of their profits any larger dividends on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the additional new capital as may be issued as preference capital.

Limit of dividend on new capital.

14. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenue of the Undertakers applicable to dividend together with the sum (if any) to be taken from the reserve fund for the purpose of paying dividend are insufficient to pay the full amount of the prescribed rates of dividend on each class of ordinary shares or stock in the existing and additional capital the dividends shall be payable on each class in accordance with the following scale:—

Scale of dividend on different classes of capital.

- (1) If the dividend payable in respect of the capital entitled to a standard dividend of ten per centum per annum (in this section called "ten per cent. capital") shall not exceed five per centum per annum the dividend payable in respect of the capital entitled to a standard rate of dividend of seven per centum per annum (in this section called "seven per cent. capital") shall be the same as that payable in respect of the ten per cent. capital
- (2) If the dividend payable in respect of the ten per cent. capital shall exceed five per centum per annum and shall not exceed seven per centum per annum the dividend payable in respect of the seven per cent. capital shall be at the rate of five per centum per annum :
- (3) If the dividend payable in respect of the ten per cent. capital shall exceed seven per centum per annum and shall not exceed nine per centum per annum the dividend payable in respect of the seven per cent. capital shall be two per centum per annum less than the dividend payable in respect of the ten per cent. capital :
- (4) If the dividend in respect of the ten per cent. capital shall exceed nine per centum per annum the dividend payable in respect of the seven per cent. capital shall be at the maximum authorised rate of dividend.

15. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock in the additional capital to which a preferential dividend shall be assigned.

Restrictions as to votes in respect of preference shares or stock.

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Abbey and
Cheshunt Gas.
Power to
borrow.

16. The Undertakers may borrow on mortgage of the undertaking such sum or sums as together with the amounts which they are by the Act of 1869 and the Order of 1881 authorised to borrow shall not in the whole exceed one-third part of the amount of the capital by the said Act and Order and by this Order authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Undertakers have proved to the justice who is to certify under section 40 of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Undertakers and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Priority of
principal
moneys
secured.

17. The principal moneys secured by all mortgages granted by the Undertakers in pursuance of the powers of any Act of Parliament or Order confirmed by Parliament before the commencement of this Order and then subsisting shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Order but nothing in this section shall affect priority of the interest of any debenture stock or mortgages created and issued or granted by the Undertakers.

For appoint-
ment of a
receiver.

18. As from the commencement of this Order section 18 of the Act of 1869 and section 20 of the Order of 1881 are hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under one or both of such sections prior to the commencement of this Order and the mortgagees of the undertaking may enforce payment of arrears of principal or interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-twentieth part of the whole amount for the time being owing by the Undertakers upon mortgage of the undertaking.

Debenture
stock.

19.—(1) The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 but notwithstanding anything contained therein or in the Act of 1869 or in the Order of 1881 the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Undertakers under any previous Act of Parliament or Order confirmed by Parliament or this Order or any subsequent Act or Order shall subject to the provisions of any subsequent Act or Order rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by

such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

(2) So much of section 13 of the Order of 1881 as is inconsistent with the provisions of this section and so much of section 14 of that Order as relates to debenture stock issued under the authority of the Act of 1869 or of the Order of 1881 are hereby repealed.

20. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be sufficient discharge to the Undertakers.

21. All moneys to be raised by the Undertakers on mortgage or debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Undertakers for the purposes of the undertaking and works or injuriously affected by the construction thereof or by the exercise of any power conferred on the Undertakers.

22. All moneys raised under this Order shall be applied to the purposes of the undertaking to which capital is properly applicable.

23.—(1) The directors of the Undertakers may if they think fit annually appropriate out of the revenue of the Undertakers and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital of the Undertakers including premiums to be called "the renewal fund" for the purpose of providing for the renewal and repair of their gasworks mains and pipes and may appropriate as occasion may require any portion of such fund to such purposes.

(2) Such fund shall be invested in any securities in which trustees are for the time being authorised by law to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Undertakers.

(3) When and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend.

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Receipt in case
 of persons not
sui juris.

Priority of
 moneys raised
 on mortgage or
 debenture
 stock over
 other claims.

Application of
 money.

Renewal fund.

A.D. 1904.

Waltham
Abbey and
Cheshunt Gas.

(4) If such fund be at any time reduced below the said sum it may thereafter be made up in manner herein-before provided to that sum and so from time to time as often as such reduction shall happen.

(5) Resort may be had to such fund for the purposes aforesaid although the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Undertakers as aforesaid.

Works.

Power to construct and maintain additional gas-works.

24. The Undertakers may upon the lands described in the schedule annexed to the Order of 1881 and upon the lands described in the schedule to this Order while they are possessed of the same construct erect make and maintain alter and enlarge retorts retort-houses gasholders receivers purifiers meters apparatus and works for the manufacture and storage of gas and of coke and ammoniacal liquor and other residual products obtained in the manufacture of gas and matters producible therefrom and they may make and store gas on such lands and supply and sell the same within the limits of supply and may on the same lands manufacture and store tar coke pitch asphaltum ammoniacal liquor oil and other such residual products as aforesaid and may sell and dispose of the same at their works and elsewhere and they may also construct and maintain alter enlarge renew or discontinue houses offices buildings and other works connected with the undertaking.

For protection of Herts County council.

25. Notwithstanding anything contained in this Order the following provisions for the protection of the county council of the administrative county of Hertford (in this section referred to as "the county council") shall unless otherwise agreed between the company and the county council have effect:—

(1) The Company shall not permit any trench made by them in any main road street bridge or other highway for the time being maintainable by the county council or to the maintenance of which the county council shall for the time being contribute to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time:

(2) Where any pipe conduit or other work of the Company is required to be laid or constructed beneath the surface of any such road street bridge or highway as aforesaid the same shall if possible be laid or constructed at such a depth that not less than two feet shall intervene between the surface of such road street bridge or highway and the upper surface of such pipes conduit or work Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as herein-after in this section provided:

- (3) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of an agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party.

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 Abbey and
 Cheshunt Gas.*

26. If any difference arise between the Undertakers and any railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same the same shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences
 with railway
 and other com-
 panies.

Miscellaneous.

27. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construc-
 tion and plac-
 ing of pipes &c.
 between mains
 and meters.

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Undertakers' mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with:

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(6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to supply gas fittings
Fittings not to be subject to distress.

28.—(1) The Undertakers may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges dynamos pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon between the Undertakers and the persons to or for whom the same are sold let fixed repaired or removed and such remuneration rents and charges shall be recoverable in the same manner as rents or sums due to the Undertakers for gas.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Anti-fluctuators for gas engines.

29. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Gas consumers to give notice to Undertakers before removing.

30.—(1) Twenty-four hours' notice in writing shall be given to the Undertakers by every gas consumer before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur.

[4 EDW. 7.] *Gas Orders Confirmation (No. 3)* [Ch. clxvi.]
Act, 1904.

(2) Notice of the effect of this enactment shall be endorsed on every demand note for gas rent. A.D. 1904.

31. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.
*Waltham
Abbey and
Cheshunt Gas.*
 Notice of dis-
continuance.

32. If a person requiring a supply of gas from the Undertakers for any premises occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.
 Power to refuse
to supply per-
sons in debt for
other premises.

33. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Undertakers.
 Period of error
in defective
meters.

34. No penalty shall be incurred by the Undertakers for neglect or refusal to give a supply of gas in accordance with the provisions of this Order or of the enactments incorporated therewith or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Undertakers or was of so slight or unimportant a character as not materially to affect the value of the supply.
 No penalty in
case of un-
avoidable
cause.

35. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.
 Power to erect
&c. cottages
for officers and
servants.

36. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.
 Costs of Order.

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Waltham
Abbey and
Cheshunt Gas.

THE SCHEDULE.

GAS LANDS.

A piece of land situate in the parish of Cheshunt in the county of Hertford belonging to and in the occupation of the Undertakers forty-four feet by one hundred and thirty-eight feet comprising an area of twenty-two perches or thereabouts and bounded on the north and west by land belonging to the Undertakers on the south by premises belonging to or reputed to belong to the executors of Samuel Litchfield and on the east for a length of one hundred and thirty-eight feet by the piece of land described in the schedule to the Order of 1881.

WORSBROUGHDALE AND WORSBROUGH GAS.

Worsbrough-
dale and
Worsbrough
Gas.

Order empowering the Worsbroughdale and Worsbrough Gas Light and Coke Company Limited to maintain continue and construct gasworks and to supply gas within part of the urban district of Worsbrough and for other purposes.

Short title.

1. This Order may be cited as the Worsbroughdale and Worsbrough Gas Order 1904.

Commence-
ment of Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order) and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order.

Interpretation.

4. In this Order the expression "the prescribed rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in

whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained continued and constructed.

A.D. 1904.
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*Worsbrough-
 dale and
 Worsbrough
 Gas.*

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall include the whole of the urban district of Worsbrough in the West Riding of the county of York except such portions thereof as are adjacent to the borough of Barnsley and are within the limits of supply of the Barnsley Gas Company as shown on the 6-inch Ordnance map deposited by the Undertakers for the purposes of this Order with the Board of Trade and except also a triangular portion of the said district where Blacker Hill Middle Blacker and Blacker Well are situated and which excepted portion or part thereof is already supplied by the Elsecar Wentworth and Hoyland Gas Company and which excepted portion is bounded on the north-west side in part by the Barrow Colliery Railway and lies to the south or south-east of a blue line shown on the said Ordnance map which line runs in a south-westerly direction from the Blacker Lane railway bridge along the Barrow Colliery Railway a distance of eleven chains on such railway to a point where the township boundary touches the railway and in a north-easterly direction from the said bridge along the said colliery railway a distance of twenty-eight chains to the footbridge crossing the railway and then in a south-easterly direction in a straight line to a point in Wombwell Lane where the township boundary strikes such lane.

Limits of
 Order.

Undertakers.

6. The Worsbroughdale and Worsbrough Gas Light and Coke Company Limited shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Capital.

7. The share capital of the Undertakers for the purposes of the undertaking authorised by this Order shall not exceed fourteen thousand pounds consisting of the ordinary share capital already issued (in this Order referred to as "the A share capital") amounting to two thousand five hundred pounds of further ordinary share capital (in this Order referred to as "the B share capital") to be issued as in this section provided amounting to one thousand two hundred and fifty pounds and of additional share capital to be issued subject to the provisions of this Order (in this Order referred to as "the additional share capital") not exceeding ten thousand two hundred and fifty pounds including any premiums realised on the sale of any shares under the provisions of this Order unless the Undertakers shall be hereafter authorised

Capital.

A.D. 1904.

Worsbrough-
dale and
Worsbrough
Gas.

to raise further additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

The shares in the B share capital shall be issued to the holders of the A share capital rateably according to their respective holdings of such capital as fully paid up and save as in this Order otherwise provided they shall be subject and entitled to and shall be deemed to confer upon their holders all the same powers provisions liabilities privileges rights and incidents as the shares in the A share capital.

New shares to
be offered by
auction or
tender.

8. The Undertakers shall when any shares forming part of the additional capital are to be issued and before offering the same to the holder of any other shares of the Undertakers and whether the ordinary shares of the Undertakers are at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may by special resolution determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares and that the reserved price put upon such shares shall not be less than the nominal value thereof and notice of the amount of such reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares of the Undertakers except that if the bidding or offer by tender made by any holder of shares be the same in amount as the bidding or offer made by any other person for the same lot the bidding or offer of such holder shall be accepted in preference.

Purchase
money of
shares sold to
be paid within
three months.

9. It shall be one of the conditions of any sale of shares under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months of such sale.

Notice to be
given as to
sale of shares.

10. The intention to sell any shares by auction or tender by or under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares not sold
by auction or
by tender to be
offered to
shareholders.

11. When any shares have been offered for sale by auction or tender under the provisions of this Order and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the ordinary shares of the Undertakers in such manner as may be prescribed by a special resolution passed by the

Undertakers Provided that any shares so offered and not accepted within the time prescribed by such resolution shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares forming part of the additional capital and the reserve put upon such shares may upon such second or any subsequent auction or tender if the directors of the Undertakers think fit be less than the nominal value thereof and any shares not then sold shall be again offered to the holders of ordinary shares at the last-mentioned reserved price and so on until the whole amount of such shares is sold.

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Worsbrough-
dale and
Worsbrough
Gas.

12. Any sum of money which may arise from the issue of any shares under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application of
premium arising
on issue of
shares.

13. Except as in this Order otherwise provided the Undertakers shall not in any year declare or make out of their profits any larger dividend on the said capital than ten pounds in respect of every one hundred pounds actually paid up of the A share capital and five pounds in respect of every one hundred pounds of the B share capital and seven pounds in respect of every one hundred pounds actually paid up of the additional capital.

Limits of divi-
dend on capital.

14. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary shares in the A share capital the B share capital and additional capital a proportionate reduction shall be made in the dividends payable on each class.

Dividends on
different classes
of shares to be
paid propor-
tionately.

15. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-fourth of the amount of the capital of the Undertakers at the time actually raised by the issue of shares including the B share capital and any premiums that may be obtained on the sale of any shares under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Limit of bor-
rowing power.

Purchase of Land.

16. The Undertakers may for the purposes of the undertaking purchase or take on lease or acquire (by agreement but not otherwise) and hold in addition to the lands described in Schedule A to this Order any lands which they may require Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands

Power to pur-
chase addi-
tional land.

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dale and
Worsbrough
Gas.*

Undertakers
may maintain
and construct
gasworks on
lands described
in Schedule A
and may make
gas &c.

described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or storing gas except the lands described in the said schedule.

17. The Undertakers may on the land shown on the map deposited for the purposes of this Order or any part thereof and described in Schedule A annexed to this Order while they are possessed of the same maintain and continue alter and enlarge renew or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storage of gas and of coke and other residual products obtained in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order upon the said land make and store gas and supply and sell the same within the limits of supply and may manufacture and store coal-tar coke pitch asphaltum and ammoniacal liquor oil and all other residual products obtained in the manufacture of gas and matters producible therefrom and may sell and dispose of the same at their works and elsewhere and may also deal in and sell lime at their works and elsewhere and they may construct and maintain alter extend enlarge and renew or discontinue houses offices buildings and other works connected with the undertaking or for the officers and servants employed by the Undertakers.

Power to
Undertakers
to purchase
and supply gas
appliances and
apparatus
Fittings not to
be subject to
distress.

18.—(1) The Undertakers may at their works or elsewhere purchase hire supply sell or let on hire but shall not manufacture gas meters fittings gas stoves and cooking and other apparatus and may also purchase hire sell let deal in and contract for doing work in connexion with but shall not manufacture fittings tubes meters pipes apparatus stoves ranges and apparatus for heating for domestic and other purposes by means of gas and all articles and things in any way connected with gasworks or with the supply use or consumption of gas and may make and take charges and remuneration in respect thereof.

(2) All fittings and appliances let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Power to take
licences for use
of patents.

19. The Undertakers may subject to the provisions of this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made

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granting any right or privilege of working using or vending any invention in relation to the manufacture supply and distribution of gas or the manufacture of ammoniacal liquor and sulphate of ammonia.

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*Worsbrough-
dale and
Worsbrough
Gas.*

20. The Undertakers may contract with any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority of and of any company or person supplying gas under parliamentary powers within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Power to contract for sale of gas in bulk.

21. In executing the works by this Order authorised where the same affects the railways and works of the Barnsley Electric Traction Company Limited the Undertakers shall (except so far as it may be otherwise agreed between the last-named company and the Undertakers) be subject to the following condition :—

For protection of Barnsley and District Electric Traction Company Limited.

Nothing in this Order shall authorise any interference with the light railways and works authorised by the Barnsley and District Light Railways Order 1900 and the Barnsley and District Light Railways (Extensions) Order 1902 except in accordance with and subject to the provisions of section 34 of the former Order.

22. The following provisions for the protection of the Sheffield and South Yorkshire Navigation Company (herein-after referred to as "the navigation company") shall unless otherwise agreed in writing between the Undertakers and the navigation company be in force and have effect and be binding on the Undertakers and the navigation company :—

For protection of Sheffield and South Yorkshire Navigation Company.

In carrying out any works for the maintaining of all their existing works mains pipes and apparatus and in extending or renewing the same and in laying down new works mains pipes and apparatus or other works along or across or in any way affecting the canal towing-path bridges lands or other property now or hereafter belonging to or used or occupied by the navigation company the same shall be done under the superintendence and to the reasonable satisfaction of the engineer of the navigation company and according to plans and sections to be previously submitted to and reasonably approved by him and in all things by and at the expense of the Undertakers and all such works matters and things shall be constructed executed and done so as not to cause any injury to such canal towing-path bridges lands or other property of the navigation company or interruption to the passage or conduct of the traffic on such canal And if any injury or interruption shall arise from or be in any way caused by any of the acts operations matters and things aforesaid the Undertakers shall make compensation in respect thereof to the navigation company the amount of such compensation together with full costs to be recoverable from the Undertakers in any court of competent jurisdiction And the Undertakers shall pay to

[Ch. clxvi.] *Gas Orders Confirmation (No. 3)* [4 EDW. 7.]
Act, 1904.

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dale and
Worsbrough
Gas.

the navigation company the annual rent of twenty shillings for the maintenance of existing works mains and pipes and the laying down of any new mains or pipes in or over the canal towing-path bridges lands or other property of the navigation company :

Any difference which may arise between the Undertakers and the navigation company under this section shall be determined by an arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers.

For protection
of Great Cen-
tral Railway
Company.

23. The following provisions for the protection of the Great Central Railway Company (in this section called "the company") shall unless otherwise agreed in writing between the Undertakers and the company be in force and have effect and be binding on the Undertakers :—

In laying down and executing any mains pipes or other works (not being the repair or renewal of existing works of which the character and position are not altered) upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the company or the bridges approaches or other works or any level crossings of or repairable or used by the company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the company and only according to plans and sections submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Undertakers who shall also restore and make good the roads over any such bridges level crossings and approaches which the said company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Undertakers and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railway bridges level crossings approaches station works lands or property or interruption to the passage or conduct of the traffic over such railway or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any of such mains pipes or works under or near to any such bridge or level crossing the Undertakers shall make compensation in respect thereof to the company the amount of such compensation together with full costs to be recoverable from the Undertakers by all and the same means as any simple contract debt is recoverable :

Any difference which may arise between the Undertakers and the company under this section shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

For protection
of West Riding
County
Council.

24. In executing the works and exercising the powers by this Order authorised so far as they affect main roads and county bridges of the West Riding of the county of York the following provisions for the protection of

the county council of the said West Riding (in this section called "the county council") shall have effect unless otherwise agreed on in writing between the county council and the Undertakers (that is to say):—

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Gas.

- (1) All mains pipes (not being service pipes) or works to be laid in or along any main road (other than renewals of existing mains pipes or works now belonging to or hereafter acquired by the Undertakers) shall be constructed and laid in such position at the side thereof as the county council shall by writing under the hand of their surveyor direct and shall not be constructed or laid in upon or across any county or main road bridge or any arch connected therewith but shall be carried over the stream crossed by such bridge by means of wrought iron riveted tubing (or other suitable method to be agreed on between the parties) entirely separate from and independent of such bridge or arch and the gradient of such bridge and of the respective approaches thereto shall not be altered:
- (2) All works to be constructed or laid in along or across or in any way affecting any main road or county or main road bridge or any approach thereto shall be executed at the expense of the Undertakers under the superintendence and to the reasonable satisfaction of the said surveyor and in accordance with plans sections and specifications to be submitted to and to be reasonably approved of by him in writing before the commencement of any such work (except in case of emergency arising from defect in any pipes and then as soon as possible after the necessity for remedying the same shall be apparent) Provided that if the said surveyor shall not within one month after the same shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof:
- (3) The works shall be so executed as not in any way to stop or unreasonably interfere with the traffic on any main road or county or main road bridge or any approach thereto and all such works shall be proceeded with and completed with all possible despatch:
- (4) The Undertakers shall pay to the county council the reasonable cost in relation to the examination of the said plans sections and specifications and the superintendence by this section authorised:
- (5) Notwithstanding anything in this Order contained it shall be lawful for the county council at any time or times to divert widen or improve any such main road and also to remove alter widen or renew any such county or main road bridge or the approaches thereto in alongside or near to which any such mains pipes or works are carried in the same manner as they might have diverted widened or improved removed altered or renewed any

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Gas.*

such main road or bridge or the approaches thereto if this Order had not been confirmed and such mains pipes or works had not been constructed or laid in over alongside or near to such main road or bridge respectively without making any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of such diversion widening improvement removal alteration or renewal And in the event of any such main road or bridge or the approaches thereto in alongside or near to which such mains pipes or works are laid being diverted widened or improved removed altered or renewed as aforesaid the Undertakers shall at their own expense if as and when requested by the said surveyor remove or alter the position of their said mains or pipes and the works by which the same are carried alongside or near to any such main road or bridge or the approaches thereto as aforesaid and replace the same to the satisfaction of the said surveyor of the county council Provided that before and during such diversion widening improvement removal alteration or renewal of any such main road or bridge as aforesaid the county council shall afford at the cost of the Undertakers reasonable facilities for temporarily carrying such mains or pipes along the main road or across the stream so as not to interrupt the continuous supply of gas :

- (6) Notwithstanding anything in this Order contained if any difference arises between the Undertakers and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer agreed upon or failing agreement to be appointed by the Board of Trade on the application of either of the parties in difference and his decision shall be conclusive and the costs of the reference shall be borne as he shall direct.

For protection
of Worsbrough
Urban District
Council.

25. The following provisions for the protection of the Worsbrough Urban District Council (herein-after referred to as "the council") shall unless otherwise agreed in writing between the Undertakers and the council be in force and have effect :—

- (1) The gas which the Undertakers are by this Order authorised to make and supply within the limits of supply shall only be gas manufactured from the carbonising of coal and nothing in this Order contained shall in any way derogate from or interfere with any right of making or supplying gas (other than coal gas as aforesaid) or any other means of lighting the streets markets and public buildings in the said urban district which the council might have exercised before the commencement of this Order :
- (2) The Undertakers shall at their own expense within two years from the commencement of this Order lay the mains necessary for affording a supply of gas to Birdwell and Birdwell Common :

(3) The price to be charged by the Undertakers for gas supplied for public lighting shall be four shillings per thousand cubic feet or sixpence less per thousand cubic feet and so in proportion for any less quantity supplied than the price for the time being charged by the Undertakers to any private consumer whichever may be lower :

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Gas.

(4) If at any time within fifteen years after the commencement of this Order the council shall be duly authorised to purchase the undertaking and shall have given to the Undertakers six months notice in writing of their desire to purchase the same the Undertakers shall at the expiration of such notice sell and the council shall purchase the whole of the undertaking including all the property real and personal of every description and all the rights powers and privileges of the Undertakers absolutely freed as between the Undertakers and the council from all debts mortgages and incumbrances at such price and on such terms and conditions as may be agreed upon between the council and the Undertakers or failing agreement as may be determined by arbitration under the Lands Clauses Acts Provided that if such notice shall have been given within two years from the commencement of this Order the arbitrators or umpire shall not in settling the amount to be paid by the council to the Undertakers have regard to the fact that the Undertakers have obtained this Order and in addition to the sum to be paid by the council to the Undertakers under the last-mentioned provision the council shall pay to the Undertakers all costs reasonably incurred and paid by them for and in connexion with the application for and the granting and subsequent confirmation of this Order not exceeding three hundred and forty pounds :

Provided that after the completion of such purchase all obligations on the part of the Undertakers to supply gas within the limits of supply under this Order shall cease and determine The notice requiring the Undertakers to sell shall not be given except in pursuance of a resolution passed at a special meeting of the council and no such resolution shall be valid unless one month's previous notice of the meeting and of the purport thereof has been given in manner in which notices of meetings of the council are required by law to be given nor unless two-thirds of the members of the council are present and vote at the meeting and a majority of those present and voting concur in the resolution and it shall be lawful for the chairman of any such meeting with the consent of the majority of the members present to adjourn the same from time to time.

26. If any difference arise between the Undertakers and any road authority or railway canal or other company (other than the Sheffield and

Differences
with road
authorities or

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railway or
other com-
panies.

South Yorkshire Navigation Company) whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Quality of Gas.

Quality of gas.

27. The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce a light equal in intensity to the light produced by not less than fourteen sperm candles and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Price of Gas.

Price of gas.

28. The price to be charged by the Undertakers for gas supplied by them shall not exceed four shillings and sixpence per thousand cubic feet and so in proportion for any less quantity supplied. Provided that at any time after the expiration of three years from the commencement of this Order the Board of Trade may if they think fit by order in writing signed by a secretary or assistant secretary of the said Board alter the maximum price either by substituting any other sum for the said sum of four shillings and sixpence or by prescribing a standard price with sliding scale as to profits and as from the date specified in such order (herein-after referred to as "the specified date") the price to be charged by the Undertakers for gas supplied by them shall be in accordance with such order. Provided further that in case such order shall prescribe a standard price with sliding scale as to profits then as from the specified date the provisions set forth in Schedule B to this Order annexed shall be in force and have effect and this Order shall be read and construed accordingly. A copy of such order made by the Board of Trade shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

Pressure of Gas.

Pressure of
gas.

29. All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

Testing of Gas.

Testing of gas.

30. The Undertakers shall within six months after the commencement of this Order cause to be provided at their works a testing place with apparatus therein according to the provisions of the Gasworks Clauses Act

1871 and the burner to be used for testing gas shall be a Sugg's London Argand No. 1 with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame tails over the top of the glass a six-inch by two-inch chimney shall be used. Provided that any other description of burner may be used which may for the time being be approved for the purpose by the Board of Trade and any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may, subject to the terms of his appointment at such testing place or elsewhere as and when he thinks fit test the pressure at which the gas is supplied and for that purpose may open any street road passage or place (not being the immediate approach to any railway or canal bridge or railway station) vested in or under the control of any local or road authority and two hours' previous notice in writing shall be given to the Undertakers of the time and place at which such testing is to be conducted.

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Gas.*

Miscellaneous.

31. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident.

Exemption
from penalty
in case of
unavoidable
cause.

32. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of any moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest after the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Undertakers
to pay interest
on deposit.

33. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it shall have been proved to have arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers in pursuance of the certificate of the inspector shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Undertakers.

Period of error
in defective
meter.

34. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order. Provided that for the purpose of such incorporation the expression "the company" in the said section shall be construed to mean the Undertakers.

8 Vict. c. 16
s. 140 incor-
porated.

35. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas or meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to re-
fuse to supply
persons in debt
for other pro-
perty.

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dale and
Worsbrough
Gas.

Gas consumers
to give notice
of discon-
tinuance.

36. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer of gas supplied by the Undertakers before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Undertakers.

Costs of Order.

37. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULES.

SCHEDULE A.

GAS LANDS.

(1) A piece of land situate in Worsbrough Dale in the township of Worsbrough in the parish of Darfield in the West Riding of the county of York containing 1154 square yards or thereabouts bounded on the north by land of the Sheffield and South Yorkshire Navigation Company and on all other sides by land of the Great Central Railway Company.

(2) A piece of land situate in Worsbrough Dale in the said township of Worsbrough containing 1 acre 0 rood 6 poles or thereabouts bounded on the north by Goosehulls Road on the south by property now or lately belonging or reputed to belong to Henry Wildsmith on the east by property belonging or reputed to belong to Joseph and Francis Hammerton and on the west by Edmunds Road.

SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Undertakers with sliding scale as to profits and as from the specified date be read and construed subject to the modifications following:—

Sections 30 to
34 of Gasworks
Clauses Act

(1) Sections 30 to 34 (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or to form part of the

foregoing Order and in construing the said Act for the purposes of the foregoing Order section 35 of the said Act shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the prescribed rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the insurance fund:

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1847 to cease
to be incor-
porated.

- (2) Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet:

Price of gas
with sliding
scale as to
dividend.

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary share capital or stock as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and two shillings and sixpence on every one hundred pounds of ordinary capital with a five per centum standard rate of dividend and so on in proportion for any fraction of one hundred pounds;

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rate by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and three shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a seven per centum standard rate of dividend and two shillings and sixpence on every one hundred pounds of ordinary capital with a five per centum standard rate of dividend and so on in proportion for any fraction of one hundred pounds:

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If profits ex-
ceed amount
limited excess
may be inves-
ted and form
an insurance
fund.

(3) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Undertakers be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital of the Undertakers which fund shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Undertakers from accident strike or other circumstance which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said limit as often as such reduction happens Provided that when and so often as the said fund reaches the said limit of one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend Provided also that resort may be had to the insurance fund to meet any such extraordinary claim demand or charge as aforesaid although such fund may not at any time have reached or may have been reduced below the full amount of one-twentieth as aforesaid :

Application of
further excess
of profits over
prescribed
rates.

(4) If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the prescribed rates the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year :

Power to create
a reserve fund
and applica-
tion thereof.

(5) Where in any year the prescribed rates on the ordinary share capital or stock of the Undertakers exceed the standard rate by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividends the Undertakers may in such year set apart such sum as they think fit by way of a reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the specified date in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in

any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the prescribed rates and save as by this schedule specially provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund :

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- (6) Nothing in this schedule contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the specified date with respect to the gas-works of or the supply of gas by the Undertakers.

Saving of exist-
ing contracts.

WORTHING GAS.

Order empowering the Worthing Gas Light and Coke Company to raise Additional Capital and for other purposes.

Worthing Gas.

1. This Order may be cited as the Worthing Gas Order 1904.

Short title.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of Order.

3. The Worthing Gas Act 1868 and the Worthing Gas Act 1875 (in this Order respectively referred to as "the Act of 1868" and "the Act of 1875") and the Worthing Gas Order 1894 (in this Order referred to as "the Order of 1894") as amended by this Order and this Order shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Order.

Construction
of Order.

4. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are incorporated with and form part of this Order (that is to say):—

Incorporation
of Acts.

The provisions of the Companies Clauses Acts 1845 to 1889 with respect to the following matters:—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

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[4 EDW. 7.]

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The giving of notices ; and

Worthing Gas.

The provision to be made for affording access to the special Act by all parties interested ;

And Part I. (relating to the cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 and the Companies Clauses Act 1869 and the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 except sections 30 to 34 of the former of those Acts and for the purposes of such incorporation the expression "special Act" in those Acts shall be construed to mean this Order and section 35 of the former of those Acts shall for the purposes of this Order be construed as though the words from "in case the whole" to the words "have been paid" inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the prescribed rates as defined by this Order together with any sum which under the provisions of this Order might lawfully be carried to an insurance fund.

Interpretation.

5. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and the term "Company" shall mean the Undertakers.

Undertakers.

6. The Worthing Gas Light and Coke Company shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Additional capital.

7. In addition to the capital already authorised to be raised by the Undertakers they may for the purposes of their gas undertaking—

(1) Raise further sums not exceeding in the whole thirty-two thousand pounds (in this Order referred to as "the additional capital") by the issue of new ordinary or preference shares or stock or wholly or partly by any one or more of those methods but the Undertakers shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained on the sale thereof as herein-after provided shall have been paid in respect thereof Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof as herein-after provided the sum of thirty-two thousand pounds:

(2) Borrow on mortgage in respect of the additional capital of thirty-two thousand pounds by this Order authorised to be raised by the

issue of ordinary or preference shares or stock any sum or sums not exceeding in the whole one-third part of the amount payable in respect of the additional capital at the time actually issued including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until shares or stock for so much of the additional capital in respect of which such borrowing powers are sought to be exercised together with the premiums (if any) realised on the sale thereof have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock and premiums (if any) have been fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

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8. The Undertakers shall not in any year (except as by the Order of 1894 is otherwise provided) declare or make out of their profits a larger dividend on the capital by this Order authorised to be raised than at the rate of seven pounds in respect of each one hundred pounds actually paid up of such capital as is issued as ordinary capital or than at the rate of five pounds on every one hundred pounds of such capital as is issued as preference capital:

Limitation of dividends.

Provided that the dividend on the ordinary capital of the Undertakers by this Order authorised to be raised may be increased and shall be reduced in accordance with the provisions of section 30 (Fixing price of gas with sliding scale as to dividend) of the Order of 1894.

9. Except as by this Order otherwise provided the ordinary capital created by the Undertakers under this Order and the shares or stock therein and the holders thereof respectively shall be subject and entitled to all the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the existing capital of the Undertakers of the same class or description and the shares or stock in the additional capital were shares or stock in that capital. The capital in shares or stock so created shall form part of the general capital of the Undertakers.

Except as otherwise provided shares or stock in additional capital to be subject to same incidents as other shares or stock.

10. The Undertakers shall when any shares or stock created under the powers of this Order are to be issued and before offering the same to the holder of any other shares or stock of the Undertakers and whether the ordinary shares or ordinary stock of the Undertakers are or is at a premium or not offer the same for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers may determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that notice of the amount of the reserved price shall be sent by the Undertakers in a sealed letter to the Board of Trade not less than twenty-four hours before

Additional capital to be offered by auction or tender.

A.D. 1904. the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock of the Undertakers except that if the bid or offer of any holder of shares or stock shall be the same in amount as the bid or offer of any other person for the same lot the bid or offer of such holder shall be accepted in preference.

Worthing Gas.

Purchase money of shares or stock to be paid within three months.

11. It shall be one of the conditions of any sale of shares or stock under the provisions of this Order that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Undertakers within three months after such sale.

Notice to be given as to sale of shares or stock.

12. The intention to sell any shares or stock by auction or tender under the provisions of this Order shall be communicated by the Undertakers in writing to the clerk of every local authority having jurisdiction within the limits of supply and to the Secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised by the Undertakers once in each of two consecutive weeks in one or more newspapers circulating within the limits of supply.

Shares or stock not sold by auction or tender to be offered to holders of ordinary shares or stock or otherwise disposed of.

13. When any shares or stock created under the provisions of this Order shall have been offered for sale by auction or by tender under the provisions of this Order and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same respectively for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of the ordinary shares or ordinary stock of the Undertakers in the manner prescribed by the Companies Clauses Act 1863 Provided that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or tender in the manner and subject to the provisions of this Order with respect to the sale of shares or stock and any shares or stock not then sold may be disposed of by the directors or be again offered to the holders of ordinary shares or ordinary stock at the reserved price put upon the same at such second auction or offer by tender and so on until the whole amount of such shares or stock is sold.

Application of premium arising on issue of shares or stock.

14. Any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Undertakers but shall be expended in extending or improving the works of the Undertakers or in paying off money borrowed or owing on mortgage by the Undertakers and shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that all such sums shall be deemed to be part of the paid-up capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and the amount which the Undertakers may invest to form an insurance fund.

15. In case in any year or in any half year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the authorised rate of dividend on each class of ordinary shares or stock of the Undertakers a proportionate reduction shall be made in the dividend payable on each class.

A.D. 1904.
Worthing Gas.
 Dividends to be paid proportionately.

16. Every person who becomes entitled to shares or stock in the additional capital authorised to be raised under this Order shall in respect of the same be a holder of shares or stock in the capital of the Undertakers and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount for the time being called and paid on such shares or to the whole amount of such stock as the case may be.

Dividends on new shares or stock.

17. Except as otherwise expressly provided by any resolution creating the same no person shall be entitled to vote in respect of any shares or stock to which a preferential dividend shall be assigned.

Restrictions as to votes in respect of preferential shares or stock.

18. If any money is payable to a shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic or otherwise incapable of managing his affairs the receipt of the guardian or committee of his estate or other person duly appointed to receive money on his behalf shall be a sufficient discharge to the Undertakers.

Receipt in case of persons not sui juris.

19. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or to be raised by the issue of debenture stock or any part of such money by the creation of shares or stock instead of by borrowing or by the creation of debenture stock or to convert into capital the amount borrowed under the provisions of this Order.

As to conversion of borrowed money into capital.

20. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein or in any Act or Order passed previously to this Order contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Undertakers shall (subject to the provisions of any subsequent Act or Order) rank *pari passu* (without respect to the date of the security or of the Acts of Parliament Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock granted or issued under the powers of this Order.

Debenture stock.

21. The mortgagees of the Undertakers under this Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver

For appointment of a receiver.

A.D. 1904. is made shall not be less than one-tenth part of the total amount for the
Worthing Gas. time being owing by the Undertakers on mortgage under the authority
of this Order.

Limit of inter-
est on money
borrowed.

22. The Undertakers shall not without the consent of the Board of
Trade pay interest at a higher rate than five pounds per centum per
annum in respect of any moneys borrowed on mortgage or raised by the
creation and issue of debenture stock under the authority of this Order.

Existing mort-
gages to have
priority.

23. All mortgages granted by the Undertakers under the authority of
the Acts of 1868 and 1875 and the Order of 1894 or any of them before
the commencement of this Order and subsisting at the date of such com-
mencement shall during the continuance of such mortgages and subject
to the provisions of the said Acts and the Order of 1894 have priority
over all mortgages granted under the authority of this Order but nothing
in this section shall affect any priority of the interest of any debenture
stock at any time created and issued by the Undertakers and notwith-
standing anything in the said Acts or the Order of 1894 contained all
debenture stock at any time created and issued by the Undertakers shall
rank *pari passu*.

Application of
provisions of
section 24 of
Order of 1894.

24. The provisions of section 24 (Power to create a reserve fund and
application thereof) of the Order of 1894 shall extend and apply to the
capital by this Act authorised to be raised as if such capital were new capital
within the meaning of that section.

Application of
moneys raised
under Order.

25. All moneys raised under this Order shall be applied only to the
purposes of the Acts of 1868 and 1875 and the Order of 1894 and this Order
to which capital is properly applicable.

Miscellaneous.

Fittings let for
hire not to be
subject to
distress.

26. Any gas meters fittings gas stoves cooking and other apparatus
appliances and things (in this section called "fittings") let for hire under
the provisions of section 28 (Power to make gas meters &c.) of the Order of
1894 shall not be subject to distress or to the landlord's remedy for rent
or be liable to be taken in execution under any process of any court or
any proceedings in bankruptcy against the persons in whose possession the
same may be Provided that such fittings have upon them respectively
a distinguishing metal plate affixed to a conspicuous part thereof or a
distinguishing brand or other mark conspicuously impressed or made thereon
sufficiently indicating the Undertakers as the actual owners thereof.

Gas consumers
to give notice
to Undertakers
before remov-
ing.

27. 'Twenty-four hours' notice in writing shall be given to the Under-
takers by every consumer of gas supplied by the Undertakers before he shall
quit any premises supplied with gas by meter by the Undertakers and in
default of such notice the consumer so quitting shall be liable to pay to the
Undertakers the money accruing due in respect of such supply up to the
next usual period for ascertaining the register of the meter on such premises
or the date from which any subsequent occupier of such premises shall

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Act, 1904.

require the Undertakers to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Undertakers. A.D. 1904.
Worthing Gas.

28. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers. Notice of discontinuance.

29. If a person requiring a supply of gas from the Undertakers for any premises occupies or has occupied other premises at which gas was supplied to him by the Undertakers and has not paid all gas or meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse to supply persons in debt for other premises.

30. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Undertakers. Period of error in defective meters.

31. All costs charges and expenses of and incident and preliminary to the applying for preparing obtaining and confirming of this Order and otherwise in relation thereto shall be paid by the Undertakers. Costs of Order.

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